Human Resources Policy for a Respectful Workplace – Local Adaptation - Romania

Consistent with our dream of creating an environment in which we enjoy working together, our Core Value of Respect and our Code of Ethics and Business Conduct, CGI is committed to fostering and maintaining professional workplaces that respect the dignity of all members.

1. Purpose

This document constitutes the local adaptation applicable in Romania of CGI's Human Resources Policy for a Respectful Workplace (the "Policy").

This Policy sets out:

• CGI's commitment that all Members are to be treated with respect in the Workplace;

• the reporting and investigation process related to Harassment, Discrimination or Workplace Violence incidents; in a fair, effective and timely manner while respecting individuals' right to privacy to the extent possible;

• the disclosure obligation in certain situations where Members are in Personal Relationships so as to avoid any actual, potential or perceived Conflicts of Interest, appearance of favoritism, risk of Harassment and/or Discrimination incidents;

• zero tolerance for any Harassing Behavior which includes Psychological and Sexual Harassment as well as for Discrimination and Workplace Violence;

• zero tolerance of retaliation against Members who, in good faith, report Harassment, Discrimination or Workplace Violence or cooperate with an investigation; and

• the rights and responsibilities of Members related to the implementation of this Policy.

2. Scope

This Policy is applicable to all Members, Job Candidates and any other Third Party Individual, including Providers as defined hereinafter.

3. Definitions

For the purpose of this Policy and without prejudice to any other definitions in the Applicable Legislation:

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Applicable Legislation means the local legislation applicable in Romania.

CGI collectively refers to CGI IT ROMANIA SRL and other member-companies of the CGI multinational group of companies.

CGI Business means all activities related to CGI's operations, whether or not conducted in a Workplace, and includes situations where a Member is representing CGI or could reasonably be perceived as representing CGI.

Conflicts of Interest exist when a Member's personal interests, activities or financial affairs may conflict with those of CGI or its clients, or may adversely influence the Member's judgement in the performance of duties.

Harassment or Harassing Behavior means engaging in a course of vexatious comment or conduct that is known or ought reasonably to be known to be unwelcome, related to any of the grounds referred to below as Prohibited Grounds of Discrimination, and includes Sexual Harassment and Psychological Harassment. It includes any behavior, in the form of words, gestures, conduct or actions, generally repeated, that has undesired sexual, psychological or discriminant connotations, which has a negative impact on a person's dignity or physical or psychological integrity or which results in that person being subjected to unfavorable working conditions or dismissal or which has the purpose or effect of creating an intimidating, hostile, degrading, humiliating or offensive environment.

Job Candidate means any person who applies for a position with CGI in Romania.

Member means any person employed or otherwise engaged by CGI in Romania whether on a full time, part-time, casual, permanent or temporary basis. It also includes any person employed by other member-companies of the CGI multinational group of companies while they are assigned to CGI in Romania.

Management means any person employed by CGI in a manager or above position.

Prohibited Grounds of Discrimination mean the basis on which discrimination is prohibited by the Applicable Legislation, including but not limited to: race, ancestry, place of origin, color, ethnic origin, language, religious beliefs, citizenship, social category, creed, gender, sexual orientation, gender identity, gender expression, age, marital status and disability or any other criterion that may create an intimidating, hostile, degrading, humiliating or offensive environment.

Psychological Harassment means any vexatious behaviour in the form of hostile or unwanted conduct, verbal comments, actions or gestures, that affects a Member's dignity or psychological or physical integrity and that results in a harmful work environment for the Member. For greater certainty, psychological harassment includes such behaviour in the form of such verbal comments, actions or gestures of a sexual nature. A single serious incidence of such behaviour that has a lasting harmful effect on a Member may also constitute psychological harassment.

Sexual Harassment means engaging in a course of vexatious comment or verbal or non-verbal conduct against a worker because of sex, sexual orientation, gender identity or gender expression, where the course of comment or conduct is known or ought reasonably to be known to be unwelcome, or making a sexual solicitation or advance where the person making the solicitation or advance is in a position to confer, grant or deny a benefit or advancement to the worker and the person knows or ought reasonably to know that the solicitation or advance is unwelcome.

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Provider means any person who renders goods and/or services to CGI as an independent contractor or vendor.

Third Party Individual means any person with whom a Member interacts in the course of his or her employment with CGI such as but not limited to a client or a Provider.

Workplace means all land, property, buildings, facilities, parking areas, vehicles or equipment owned, leased, operated or otherwise controlled by CGI, for the purpose of conducting CGI business, and all places where CGI conducts business or where Members are working on behalf of CGI or representing CGI (such as but not limited to client sites, social events, off-site meetings, training events, social media, telework, and business trips).

Workplace Violence means the exercise of physical force by a person against another in a Workplace that causes or could cause physical injury. It also includes an attempt to exercise physical force against a person in a Workplace that could cause physical injury and a statement or behavior (including coercion and intimidation) that could reasonably be interpreted as a threat to exercise physical force in a Workplace that could cause physical injury.

4. Policy

Discrimination

This Policy prohibits Discrimination in all aspects of employment including: recruitment and selection, training, performance assessment, promotions, transfers, layoffs, remuneration and all other employment practices and terms and conditions of employment.

Discrimination includes (but is not limited to):

• declining a Job Candidate's application for a position with CGI in Romania;

• denying a Member a promotion; and

• terminating a Member's employment

for reasons related to one or more Prohibited Grounds of Discrimination.

Unequal treatment may not always constitute Discrimination. Refer to the Applicable Legislation and contact your assigned Human Resources Business Partner should you have any questions.

CGI complies with all Applicable legislation. CGI welcomes and encourages applications from Job Candidates with disabilities. Accommodations are available on request for Job Candidates taking part in all aspects of the selection process.

Harassment

This Policy prohibits Harassment and Harassing Behavior and applies whether it occurs: (a) at the Workplace or outside of the Workplace; and (b) during work hours or outside of work hours.

A person does not have to formally object to or tell the harasser to cease the Harassing Behavior in order for such behavior to constitute Harassment.

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This Policy applies to Harassment of:

• a Member by another Member, such as but not limited to a colleague or a manager;

• a Member by a Third Party Individual in the course of the Member's employment; and

• a Third Party Individual by a Member in the course of the Member's employment.

Examples of prohibited Harassing Behavior include but are not limited to:

• making unwelcome, offensive, embarrassing or hurtful jokes or comments about a person;

• unwelcome and/or unsolicited sexual advances, unwelcome physical touching or requests for sexual favors;

• offensive and/or humiliating behavior that is related to a person's gender or sexual orientation;

• spreading malicious rumors; and

• circulating demeaning or degrading jokes or cartoons via e-mail, messaging system, social media or any other means.

This Policy does not prohibit reasonable actions taken by a manager relating to the management and direction of a Member, such as but not limited to: providing a Member with constructive feedback regarding the Member's performance, managing a Member's performance, applying disciplinary measures when appropriate and generally exercising managerial rights and responsibilities.

Workplace Violence

Workplace Violence is strictly prohibited. CGI reserves the right to take any and all necessary actions to preserve and protect the physical security and safety of its Members, Third Party Individuals, and its property. CGI will not tolerate any form of Workplace Violence.

Examples of Workplace Violence include (but are not limited to):

• acts of violence such as pushing, hitting and fighting;

• threats of violence, either by words or gestures including coercion and intimidation; and

• domestic violence that takes place in a Workplace.

Personal Relationships

While CGI does not wish to intrude in the private lives of its Members, CGI also recognizes the increased potential for Conflicts of Interest, appearance of favouritism and risk of Harassment and/or Discrimination incidents when Members are in a Personal Relationship.

If a Member is or becomes involved in a Personal Relationship with another Member who is in a direct or indirect supervisory relationship with him or her, or another Member with respect to whom he or she is in a position of influence over employment, that Member must disclose the Conflict of Interest as soon as it arises by:

• speaking or writing to their manager and/or the assigned Human Resources Business Partner, Ethics or Legal Departments; and

• completing the Personal Relationship Disclosure Form.

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If deemed necessary, appropriate measures must be implemented in order to mitigate risks for all CGI stakeholders. Such measures must be documented and their implementation monitored.

Disruption to the workplace may be particularly harmful when a Personal Relationship involving a manager is known to exist. Thus, prompt and honest disclosure of Personal Relationships among Members in a supervisory relationship is mandatory. Failure to do so may result in disciplinary action up to and including termination of employment for cause for the breach of this Policy.

CGI will work with the affected Members to determine appropriate steps, if any, to be taken in order to avoid any actual, potential or perceived Conflicts of Interest. Notwithstanding its commitment to accommodate such Members to the extent possible, CGI reserves the right to, in its sole discretion, determine the appropriate steps to be taken in order to protect CGI's interests.

To avoid Conflicts of Interest, Member must withdraw namely from employment decisions, e.g., initial employment or rehire, promotion, salary, performance appraisals, work assignments or other terms and conditions of employment, applicable to person(s) with whom the Personal Relationship.

Responsibilities

Management and Members are responsible for maintaining a respectful Workplace free of Harassment, Discrimination and Workplace Violence.

Management is responsible for:

• creating and fostering a work environment free of Harassment, Discrimination and Workplace Violence and setting an example on appropriate Workplace behavior;

• enforcing this Policy, and must make every effort to prevent Harassing Behavior, Discrimination and Workplace Violence and intervening immediately when they observe a problem or when a problem is reported to them or when they are otherwise aware that a problem exists;

• reporting to their assigned Human Resources Business Partner all Harassment, Discrimination or Workplace Violence situations immediately upon becoming aware of them (whether or not a report has been made);

• taking appropriate action, in consultation with their assigned Human Resources Business Partner, during a Harassment, Discrimination or Workplace Violence investigation, including immediate measures to ensure Members' safety and avoid escalation, when appropriate;

• advising a Member that reports an incident of Workplace Violence or Harassment to consult a physician of the Member's choice for treatment or referral to appropriate resources; and,

• ensuring that reporting requirements are met within required timelines, if applicable.

Members must refrain from any form of Harassment, Discrimination or Workplace Violence against anyone, including colleagues, managers and Third Party Individuals.

Members are responsible for:

• treating others with respect in the Workplace;

• reporting Harassing Behavior, Discrimination or Workplace Violence (whether they are victims of or witnesses to the aforementioned) in the manner described in section 5 of this Policy; and

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• cooperating with a Harassment, Discrimination or Workplace Violence investigation and respecting the confidentiality of the investigation process.

5. Voicing a concern

Members are encouraged to voice any concern they have regarding workplace conduct, including whether they are the witness or the subject to Harassment, Discrimination or Workplace Violence. CGI prohibits retaliation against Members who, in good faith, voice their concern regarding Harassment, Discrimination or Workplace Violence or who cooperate with an investigation.

A concern may be raised in accordance with the **Guide on preventing and fighting sexual and moral harassment at the workplace (Appendix 1)**. The Member's manager or, if more appropriate, the local Human Resources Business Partner can also provide additional guidance and support to the Member and the manager.

In addition, a Member can at all times voice a concern through the Ethics Incident Reporting tool using our external Web site, ethics@cgi.com or by calling (800) 461-9330.

All reported concerns regarding any Harassment, Discrimination or Workplace Violence situation, regardless of how they are voiced, will be assigned in a timely manner to be investigated.

All investigations will be handled independently and on a confidential basis. The identity of the Member reporting the concern will be kept confidential, except for such disclosure required by the Applicable Law. A Member voicing a concern regarding Harassment, Discrimination or Workplace Violence should be prepared to provide details such as: what happened; when it happened; where it happened; how often; who was involved and; who else was present (if applicable).

When a concern is raised relating to a specific person, that person will be informed that a report has been made against him or her and provided details of the allegations in order to give the person a fair opportunity to respond.

If a Member who voiced a concern or is party or witness to an incident report believes that the concern or report is not being investigated in accordance with this Policy, they should contact the Vice President, Human Resources for the WSE Strategic Business Unit or Legal Affairs at ethics@cgi.com.

Interim Measures

Where appropriate and with the Member's consent, CGI may put in place interim measures during the investigation in order to ensure Members' safety, avoid escalation of a situation and/or to protect the integrity of the investigation. Such measures may include (but are not limited to):

• temporary change in reporting relationship;

• temporary work-from-home arrangement;

• temporary change in work location; or

• other measures.

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Investigation

All investigations will be handled in accordance with the **Guide on preventing and fighting sexual and moral harassment at the workplace (Appendix 1)**.

The person who reported the incident, the person against whom the report was made and any witnesses or other relevant third parties that have been identified will be interviewed. Also, all relevant evidence, such as but not limited to documents and audio and video recordings, will be reviewed. During the investigation process, the member who reported and/or experienced the incident, the person against whom the report is made and any witnesses will be instructed not to discuss the incident or the investigation with other members or witnesses unless necessary to obtain advice about their rights.

A report of findings will be prepared that includes but is not limited to:

• a description of the allegations;

• the response of the person against whom the report was made;

• a summary of information learned from witnesses and evidence provided (if applicable); and

• a determination about whether the report is substantiated.

A Member who files a report with regards to Harassment, Discrimination or Workplace Violence to which he or she is subject to will be notified of the status of the investigation. However, investigations are confidential and CGI reserves the right not to divulge findings of such investigations in order to protect the interests of all parties involved.

Substantiated Report

If a report is substantiated, the Management will decide what corrective action is appropriate. If the investigation discloses that an individual has engaged in Harassing Behavior, Discrimination or Workplace Violence, that individual will be subject to appropriate disciplinary action, up to and including termination of employment, as well as to any other applicable forms of legal liability.

Privacy and Confidentiality

The identity of the person who reports an incident and any information obtained by CGI during the course of its investigation will be kept confidential, except where disclosure is required by the Applicable Law.

All parties to an investigation must respect the privacy and confidentiality of all other parties involved and must refrain from discussing the investigation with persons other than the ones involved during the investigation process. This does not prevent any person from seeking independent professional advice and/or assistance as he or she sees fit.

6. Summoning immediate assistance

Members are expected to remove themselves immediately from a situation of Workplace Violence or where the likelihood of Workplace Violence may exist. Members must not put themselves in danger, antagonize or argue with threatening individuals and must not ignore threatening behaviour.

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Members shall summon immediate assistance when Workplace Violence occurs or is likely to occur by contacting the Building Security or by calling '112' depending on the seriousness of the situation and provide all relevant details.

7. Contravention of Policy

Members who interfere with the resolution of an investigation, retaliate against a person for filing a report, or file an unfounded, malicious or vexatious report intended to cause harm will be found to be in contravention of this Policy and may face disciplinary action, up to and including termination of employment.

Managers who are aware of a Harassment situation, either potential or real, and who fail to report it to their assigned Human Resources Business Partner may be found in contravention of this Policy and may face disciplinary action, up to and including termination of employment.

8. Review

CGI will review this Policy at least annually or as often, as required, and will make necessary adjustments to ensure that it meets its objective of providing all members with a respectful, safe and healthy work environment.

9. Enquiries

Enquiries about the Policy can be made to your assigned Human Resources Business Partner or to Legal Affairs at ethics@cgi.com.

Owner: Vice President, Human Resources WSE Strategic Business Unit

Approving authority: Vice President, Legal, WSE Strategic Business Unit Effective

Date: Novembre 22, 2023

References: This section lists the documents consulted to create this Policy and/or that are complementary to this Policy

Document Type	Title
Enterprise Policy	Code of Ethics & Business Conduct Ethics Reporting Policy Human Resources Policy – A Respectful Workplace

Revision history

Changes are effective from the date to which they were performed.

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1.0	Novembre 22, 2023	Benoit Froment	Initial version of this document
1.1	March 29, 2024	Tincuța Constandache	Local Adaptation - Romania

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Appendix 1

GUIDE ON PREVENTING AND FIGHTING GENDER-BASED AND MORAL HARASSMENT AT WORK

CHAPTER 1: Guiding principles

1.1. By adopting and implementing the provisions of this guide, the employer undertakes to ensure a safe environment for all employees, without discrimination on the basis of race, nationality, ethnicity, language, religion, social category, beliefs, gender, sexual orientation, age, disability, chronic non-communicable disease, HIV infection, the fact of belonging to a disadvantaged group or on the basis of any other criterion which has the purpose or effect of restricting or suppressing the recognition, use or exercise, on an equal footing, of human rights and fundamental freedoms or rights recognised by law, in the political, economic, social, cultural or any other field of public life.

1.2. Ensuring equal opportunities and equal treatment between women and men is fundamental and any form of power relations between men and women is strictly forbidden, as it is considered a form of violation of human dignity, that creates an intimidating, hostile, degrading, humiliating or offensive environment.

1.3. The employer has a **zero tolerance policy** for gender-based and moral harassment at the workplace and shall treat all incidents seriously and promptly and investigate all allegations of harassment.

1.4. Any person found to have harassed another person will be subject to disciplinary action by the employer, up to and including dismissal. The application of any disciplinary sanctions will be made in accordance with the provisions of Law 53/2003 – Labour Code, republished, as further amended and supplemented.

1.5. At the employer level, management shall ensure a safe environment for all employees, where all complaints on gender-based and moral harassment at the workplace will be treated seriously, promptly and confidentially. Throughout the process of investigating complaints, all persons involved will be listened to and treated with respect and consideration, ensuring the protection of identity data in order to protect employees.

1.6. **Equality of opportunity and treatment between women and men in employment relations** means non-discriminatory access for women and men in equal measure to:

a) the choice or free exercise of a profession or activity;

b) employment in all vacant positions or jobs and at all levels of the professional hierarchy corresponding to the professional training;

c) equal pay for work of equal value;

d) information and professional counselling, initiation, qualification, improvement, specialization and vocational retraining programs;

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e) promotion to any hierarchical and professional level, in accordance with professional training and skills;

f) employment and working conditions that comply with health and safety at work rules, as provided for by the legislation in force, including dismissal terms;

g) benefits, other than those related to wages and salaries, and to public and private social security systems;

h) employers' organisations, trade unions and professional bodies and the benefits granted by them;

i) social benefits and services, provided in accordance with the legislation in force.

CHAPTER 2: Legal framework

2.1. European legal framework:

– **Council Directive 2000/78/EC of 27 November 2000** establishing a general framework for equal treatment in employment and occupation provides that *harassment* shall be deemed to be a form of discrimination when *unwanted conduct takes place with the purpose or effect of violating the dignity of a person and of creating an intimidating, hostile, degrading, humiliating, or offensive environment.*

– **Directive 2006/54/EC of the European Parliament and of the Council of 5 July 2006** on the implementation of the principle of equal opportunities and equal treatment of men and women in matters of employment and occupation (recast) which states that *harassment and sexual harassment* are contrary to the principle of equal treatment between men and women and constitute discrimination on grounds of sex. These forms of discrimination *occur not only at the workplace, but also in terms of access to work, training and career advancement.* In this context, employers and those responsible for vocational training should be encouraged to take measures to fight all forms of discrimination on grounds of sex and, in particular, to take preventive measures against harassment and sexual harassment at the workplace and with regard to access to employment, vocational training and promotion, in accordance with national law and practice.

2.2. National legislation:

- Law 53/2003 – Labour Code, republished, as further amended and supplemented;

- Law 202/2002 on equal opportunities and equal treatment between women and men, republished, as further amended and supplemented;

- Government Decision 262/2019 approving the methodological norms for the implementation of Law 202/2002 on equal opportunities and equal treatment between women and men;

- Government Decision 970/2023 approving the Methodology on preventing and fighting gender-based and moral harassment at work;

- Government Ordinance 137/2000 on the prevention and punishment of all forms of discrimination, republished, as further amended and supplemented;

- Law 286/2009 on the Criminal Code, as further amended and supplemented.

CHAPTER 3: Purpose/Objectives

3.1. The **purpose of** the guideline is to provide employees with the tools necessary to fully exercise their individual rights and freedoms at the workplace.

3.2. The **main objective** of this guide is to ensure an optimal working environment, based on equal respect for the dignity of the human being, and to provide all employees, regardless of gender, the necessary conditions for a climate in which trust, empathy, understanding, professionalism, dedication to the general interest prevail.

CHAPTER 4: Applicability

4.1. The provisions of the guide apply to all employees, as well as to people with whom they interact during working hours.

4.2. Harassment can occur both between people of different sexes and between people of the same sex. In situations where actions occur that are contrary to legal, ethical and professional conduct at the workplace and are unwanted or unwelcome by the recipient, the measures set out in this guideline will be ordered.

4.3. Harassment is a reflection of power relations and can also occur in the case of unequal relationships at the workplace, for example, between employer management and employees, but not exclusively. Power relations can take multiple forms and emerge subtly and unpredictably (employees in subordinate positions are not always the only victims).

4.4. Any type of harassment is prohibited, both at the workplace and beyond, when it comes to participation in various events, business trips, training sessions or conferences, including in relation to the employer's collaborators.

CHAPTER 5: Definitions

5.1. Defining the concept of harassment

Harassment means *any unwanted behavior that leads to the creation of an intimidating, hostile, degrading, or offensive environment for a person, as defined in the Human Resources Policy for a Respectful Workplace of CGI Romania.*

According to the provisions of Law 202/2002, **sexual harassment** is understood as *the situation in which an unwanted behavior with sexual connotation, expressed physically, verbally or non-verbally, with the object or effect of harming the dignity of a person and, in particular, creating an intimidating, hostile, degrading, humiliating or offensive environment.*

This includes situations where a person is asked to engage in sexual activity as a condition of employment, as well as situations that create a hostile, intimidating or humiliating environment.

Moral harassment at the workplace, within the meaning of Government Ordinance 137/2000 on the prevention and punishment of all forms of discrimination, republished, as further amended and supplemented, means:

"1. Any conduct towards an employee by another employee who is the employee's hierarchical superior, by a subordinate and/or by a comparable employee in terms of hierarchy, in connection with the employment relationship, which has the purpose or effect of adversely affecting working conditions by violating the employee's rights or dignity, by impairing the employee's physical or mental health or by jeopardizing the employee's future employment, manifested in any of the following forms:

a) hostile or unwanted conduct;

b) verbal comments;

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c) actions or gestures;

2. Any behavior which, by its systematic nature, may harm the dignity, physical or mental integrity of an employee or group of employees, endangering their work or degrading the working climate. Within the meaning of this law, stress and physical exhaustion fall within the scope of moral harassment at the workplace."

Harassment involves several incidents and/or actions of a repetitive nature that constitute physical, verbal and non-verbal harassment.

5.2. Example of harassment

5.2.1. Examples of conduct or behaviors that constitute harassment include, but are not limited to:

1. Physical conduct:

– unwanted, repeated physical contact (inappropriate touching of the body),

– physical violence (including sexual assault),

– the use of threats or rewards at the workplace, *for the purpose of soliciting sexual favours.*

2. Verbal conduct:

– comments on an employee's appearance, age, private life,

– sexual comments, stories, and jokes of a sexual nature, sexual advances,

– repeated and unwanted social invitations for dating or physical intimacy,

– insults related to the employee's gender or other characteristics,

– overly familiar observations,

– sending humiliating, degrading, sexually explicit messages by telephone, e-mail or any other means of communication, *whether they are done systematically/repeatedly and whether they result in, lead to or are likely to lead to physical, psychological or sexual harm.*

3. Nonverbal behavior:

- displaying sexually suggestive or explicit material;
- sexually suggestive gestures, whistling,
- persistent leering or staring, *if they are done systematically/repeatedly.*

5.2.2. Other examples:

– the manifestation or dissemination of offensive or indecent material;

– insinuations, insults or obscene or sexist/racist/homophobic remarks made systematically/repeatedly;

– using offensive language in describing a person with a disability or making fun of a person with a disability;

– comments about a person's physical appearance or character that are likely to cause embarrassment or distress;

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– unwanted attention, such as spying, constant stalking, nagging, overly familiar behavior or unwanted verbal or physical attention;

– making or repeated sending of: unwanted phone calls, text messages, e-mails, social network messages, faxes or letters with sexual or hostile connotations or that affect a person's privacy;

– unjustified, inappropriate or persistent questions about a person's age, marital status, personal life, interests or sexual orientation or similar questions about a person's racial or ethnic origin, including their culture or religion;

– unwanted sexual advances, repeated requests for a date or threats;

– suggestions that sexual favors can get a person promoted or that if they don't do it, their career will suffer.

5.3. Examples of attitudes/behaviors that are LEGITIMATE in the relationship with the employee, falling within the employer's prerogatives, and which do not constitute harassment:

– direct supervision of employees, including setting performance expectations and providing feedback on work performance;

– taking steps to correct performance deficiencies, such as placing an employee on a performance improvement plan;

– adopting disciplinary measures in compliance with legal provisions;

– drawing up guidelines on how and when the work should be carried out;

– request for updates or reports;

– approving or refusing requests for time off.

CHAPTER 6: Roles and responsibilities

6.1. **The management** of the company or the person designated for this purpose:

a) ensure that the provisions of the guide are made known to employees and are available to them at all times;

b) ensure the involvement of all employees in eliminating gender-based and moral harassment at the workplace by creating a pragmatic approach to managing these situations. **In accordance with the provisions of the Internal Regulations, each employee is required to report to the HR Department any suspicion or any improper behavior observed in relation to themselves or in relation to their colleagues.**

c) ensure that all necessary mechanisms are in place to ensure that all situations of misconduct are reported and resolved, without relying solely on formal or informal complaints from employees;

d) ensure that incidents of alleged harassment are investigated with the utmost seriousness and reported in accordance with applicable legal standards;

e) the management of the employer shall **set up a committee** for receiving and resolving complaints/reports, hereinafter referred to as the committee;

f) ensure that employees are aware that they will be listened to in the situations they present, that they have no constraints of any kind in communicating the facts, and that the situations presented are confidential and are considered with due care;

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g) ensure the **establishment of the register** of cases where complaints/reports will be registered; the register will contain the registration number, the phase of harassment, identified solutions;

h) take all necessary actions to ensure that all employees found guilty of confirmed cases of harassment are sanctioned in accordance with the legal provisions and ensure all measures to protect the victim.

6.2. **Committee for the reception and resolution of harassment cases**

6.2.1. The Committee for the reception and resolution of harassment cases shall be appointed by the management of the employer.

6.2.2. At the time of appointment of the members of the Committee for the reception and resolution of harassment cases, the members of the Committee shall sign a **confidentiality agreement** under the sanctions provided for in Article 26 para. (2) and art. 39 para. (2) (f) of Law 53/2003 – Labour Code, republished, as further amended and supplemented, in conjunction with the provisions of Art. 227 para. (1) of Law 286/2009 on the Criminal Code, as further amended and supplemented.

6.2.3. When appointing the Committee to receive and solve harassment cases, account will be taken of:

1. gender balance – equal representation of women and men, depending on the specific field of activity;

2. the ethical and professional conduct of the persons appointed to the committee investigating the harassment case;

3. none of the persons directly or indirectly involved in the events referred to and the head of the unit may be part of the committee of inquiry;

4. where appropriate, the trade union/employee representative is part of the committee;

5. the need to include people with expertise in the field, i.e., equal opportunities expert/technician;

6. the possibility to introduce an external expert into the team.

6.2.4. The Committee for the reception and resolution of harassment cases based on gender and moral harassment at work, hereinafter referred to as the Committee, shall consist of at **least three full members and one alternate member**. The committee will also have a secretary with the following duties:

1. receiving and registering complaints/reports in the Committee's special register;

2. convening the committee;

3. preparing the minutes drawn up by the Committee;

4. keeping the documents produced/managed, both electronically and on paper.

6.2.5. The Committee has the following duties:

a) ensuring that all employees are informed of the policies and legislation in force;

b) providing support and counselling for employees affected by a harassment incident, the situations exposed being confidential and considered with due care;

c) participating directly in the resolution of complaints made by employees about misconduct, whether formal or informal;

d) reporting to the employer's management all situations of harassment brought to their attention;

e) cooperating with employees in all situations where they are asked to provide information relevant to the resolution of a harassment case;

f) managing the grievance and/or disciplinary resolution processes with the employer's management.

CHAPTER 7: Complaint/report and resolution procedure

Complaint/report and resolution procedures, developed at employer level, are administrative in nature.

7.1. Informal procedure

7.1.1. Employees who are subjected to harassment should, if possible, **inform the alleged harasser** that they perceive the behavior in question as unwelcome and disruptive.

7.1.2. Harassment can occur in unequal relationships, i.e. between a person in a managerial position and a person in an executive position. There may also be situations where it is not possible for the victim to inform the alleged harasser of the fact that he/she perceives the behavior in question as unwanted and disturbing, for example, the alleged harasser may even be the person designated to handle harassment cases or the victim's supervisor.

If a victim cannot approach an alleged harasser directly, **he/she will approach the alleged harasser's supervisor** about the unwanted and disturbing behavior.

7.1.3. **They will** also **communicate to another management representative of the employer/employees' representative**. In this context, the persons mentioned above will ensure that the victim is properly informed so that the informal choice of a solution to the problem does not exclude the possibility that the victim may also want a formal solution, if the harassment continues.

7.2. Formal procedure

7.2.1. When the Committee for the reception and resolution of harassment cases receives a harassment complaint/report, they must:

a) record the complaint/report and relevant information in the register;

b) ensure that the victim understands the procedures for resolving the complaint/report;

c) keep a confidential record of all discussions;

d) respect the victim's choice;

e) make sure that the victim knows that he/she can also file a complaint/report with other institutions that have jurisdiction over harassment.

7.2.2. During the complaint/report resolution procedure, the victim has the right to be supported by a counsellor working for the employer.

7.2.3. The victim may be assisted by the employee representative during the complaint/report resolution procedure.

7.2.4. The Committee ensures that the victim is informed about the possibility of seeking legal or psychological counselling.

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7.2.5. **The table with the persons in charge**, i.e. the members of the committee and their position, will be displayed in the company premises and disseminated to all employees, according to the following model:

Committee designated by the management of the company:

No.	Name and surname	Structure/Department	E-mail
1.	Tincuța CONSTANDACHE/ Mirela GHERGHE	Human Resources	tincuta.constandache@cgi.com; m.gherghe@cgi.com;
2.	Bertrand THYSS	Legal	bertrand.thyss@cgi.com
3.	Elena ONEA	Employees' representative	elena.onea@cgi.com
4.	Luiza BORJOG	Substitute member	luiza.borjog@cgi.com

7.2.6. The company's management representative has the role of implementing the guide without being able to be part of the committee, except in situations where his/her presence is mandatory (e.g. the line manager of the alleged harasser).

7.2.7. The designation of another person in charge can only be made by an act of the employer's management.

7.2.8. **Step 1 - Filing a complaint/report**

The complaint/report can be formulated by the victim in written form (holographic or electronic, but must be signed, respecting the protection of identity data, in order to ensure its protection) or verbal (discussion with the responsible persons, following which a report will be drawn up).

7.2.9. Step 2 – Case report

7.2.9.1. The designated person/committee that received the complaint/report will start a case report which **will include**:

a) *Data in the complaint.* All relevant information provided in the complaint will be recorded immediately: dates, times and facts of the incident(s).

Data resulting from the victim counselling and guidance process.

The person in charge/Committee must:

- communicate to the victim the possibilities for resolution and consider the victim's requests and clarify the victim's views on the desired outcome and record the decision taken;
- refer him/her to psychological and legal counselling and to record the proposed and agreed measure;
- ensure that a confidential record is kept of the investigation.

b) *Data resulting from the hearing and counselling process of the person alleged to have committed the harassment*

The person in charge/Committee must:

- give the alleged harasser the opportunity to respond to the complaint;
- make sure the alleged harasser understands the complaint mechanism;
- inform the alleged harasser about the institution's policy on moral harassment, sexual harassment and national legislation in this field;
- inform the alleged harasser of possible sanctions;
- facilitate, if necessary and only with the prior agreement of the victim, discussions between the two parties;
- ensure that a confidential record is kept of the investigation.

7.2.9.2. The case report shall be made within a maximum of 7 working days from the submission of the complaint/report. Through the case report the person in charge/committee proposes to the management, if necessary, measures to protect the victim in compliance with the legal provisions.

7.2.10. Step 3 - Investigation

7.2.10.1. The case report is forwarded to the HR department and the company's management.

7.2.10.2. The Committee must:

a) interview the victim and the accused person separately;

b) interview other relevant third parties separately;

c) draw up a report of the investigation, including the complaint, investigations, findings and proposed measures;

d) if it is found that the facts reported have occurred, propose ways of resolving the complaint, taking into account the appropriate solution for the victim, in consultation with the victim;

e) if unable to determine whether or not the facts have occurred, make recommendations to ensure that the working climate is not affected: information, awareness, support groups;

f) keep a record of all actions taken;

g) ensure the confidentiality of all records relating to the case under investigation;

h) ensure that the complaint/report resolution process is completed no later than 45 working days from the date the complaint/report was made.

7.3. Settlement of the complaint/report

The resolution of the complaint/report is the final stage of the procedure, during which the person in charge/committee prepares **a final report** detailing the investigations, findings and proposed measures, if any, and submits it to the employer's management.

7.4. External complaint/examination

An employee who has been subjected to harassment can also make a complaint to other institutions that have jurisdiction over harassment.

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These complaints can be made in accordance with the provisions of Law 202/2002, republished, as further amended and supplemented, to:

- the Territorial Labour Inspectorate;

- the National Council for Combating Discrimination;

- the courts;

- criminal investigation authorities if the harassment is so serious that it falls under the forms provided for by the Criminal Code.

CHAPTER 8: Sanctions

8.1. Any person who, following the completion of the complaint/report procedure, has been found guilty of harassment, may be subject to civil and/or criminal prosecution and sanctions provided by law, including without limitation those provided by:

- Law 53/2003 – Labour Code, republished, as further amended and supplemented;

- Law 286/2009 on the Criminal Code, as further amended and supplemented;

- Government Ordinance 137/2000 on the prevention and punishment of all forms of discrimination, republished, as further amended and supplemented.

8.2. The nature of the sanctions will depend on the severity and extent of the harassment. Proportionate sanctions will be applied to ensure that incidents of harassment are not treated as normal/tolerable behavior.

8.3. The sanctions applicable to the employer are set out in Government Ordinance 137/2000 on the prevention and punishment of all forms of discrimination, republished, as further amended and supplemented, as well as in Law 202/2002 on equal opportunities and equal treatment between women and men, republished, as further amended and supplemented, and are applied in proportion to the seriousness of the facts.

CHAPTER 9: Monitoring and evaluation

9.1. The employer recognizes the importance of monitoring the implementation of these this guide on preventing and fighting gender-based and moral harassment at the workplace and will ensure that they are implemented within 6 months of their entry into force.

9.2. The heads of directorates, services, departments and those responsible for managing cases of harassment will monitor and report to the company's management on how the provisions of this guide have been applied by the end of the first quarter of each year for the previous year, including the number of incidents recorded and how they have been resolved, as well as the recommendations made.